

		In his opposition, Hood does not deny that he is a vexatious litigant subject to a prefilng order. Nor does Hood deny that he has failed to obtain a prefilng order for this action. The only basis for Hood's opposition is that Hood did not learn Avis had not filed a response until the CMC on 1/29/26, and believes he should have been able to obtain default against Avis before it filed this motion on 2/2/26. These arguments lack merit, because it is not Avis's duty to inform Hood of whether it is in default. It is "well established by the case law that where a pleading is belatedly filed, but at a time when a default has not yet been taken, the plaintiff has, in effect, <i>granted the defendant additional time within which to plead and he is not strictly in default.</i>" (<i>Goddard v. Pollock</i> (1974) 37 Cal.App.3d 137, 141, emphasis added.) Accordingly, the Clerk properly rejected Hood's multiple attempts to request entry of default, because Avis had already filed its response before Hood filed its requests. Because Hood is subject to a prefilng order and has not obtained an order from the presiding judge permitting the filing of this action, the motion is granted. The Court orders this entire action is dismissed pursuant to CCP section 391.7, subd. (c).) Although Avis requests the dismissal be "with prejudice," the Court dismisses this action without prejudice. (See <i>Kovacevic v. Avalon at Eagles' Crossing Homeowners Assn.</i> (2010) 189 Cal.App.4th 677, 687.) Avis shall give notice of the ruling.
11.	2025-1507567 Lifestarts, LLC. vs. CA-RSJ Holdings, LLC.	The Court sustains Defendant CA-RSJ Holdings, LLC's Demurrer to Plaintiffs Lifestarts LLC, Chris Knierim, and David Parker's First Amended Complaint (FAC) with 20 days leave to amend. <u>Request for Judicial Notice</u> Defendant's unopposed request for judicial notice is granted. The Lease is incorporated into the FAC and is the subject of the breach of contract cause of action. Its authenticity is not disputed and Defendant does not oppose the request. <u>Merits</u> 1. <u>Negligence</u> All persons are responsible for injuries caused by their lack of ordinary care in managing their property. (Civ. Code § 1714(a); <i>Kinsman v. Unocal Corp.</i> (2005) 37 Cal.4th 659, 672.) A landowner

may have an affirmative duty to prevent harm as a result of ownership and control of land or as a result of a special relationship (e.g., landlord-tenant, business-customer, adult-child). (*Sprecher v. Adamson Companies* (1981) 30 Cal.3d 358, 368.)

Here, Defendant argues that Plaintiffs have not properly alleged facts to show a duty of care. The Court agrees.

Plaintiffs alleges that Defendant had a duty to “maintain and repair” with regard to the plumbing of the property. (FAC, ¶76.) Plaintiffs further allege that The Lease Agreement obligated Defendants to make repairs and pay the cost of repairs, except for costs incurred by negligence or improper use by Plaintiffs. (FAC, ¶20.)

Specifically, Plaintiffs allege that starting in September of 2023, Plaintiffs notified Defendant of leaks in the bathroom ceiling. (FAC, ¶¶23, 24.) Plaintiffs allege that a 7-eleven vendor informed the Plaintiffs that the leaks were likely caused by the refrigeration line running into the 7-eleven store located directly below the East 17th street property. The Plaintiffs told this to the Defendants and were ignored. (FAC, ¶25.) Eventually, mold was identified. (FAC, ¶30.)

But the Lease designates this duty to the Plaintiff Lifestarts.

Section 22.A provides that “Tenant shall, at its sole cost and expense, maintain the Leased Premises in good, neat, clean and sanitary condition and repair.” Lifestarts’ maintenance obligation “shall include, without limitation, maintenance, replacement and repair of all heating, electrical and air conditioning equipment, plumbing, pipes, wiring, conduit, sprinkler systems, if any, lighting, floors, interior walls and partitions . . . and all other improvements comprising a part of the Leased Premises, and whether interior or exterior, except as may be required by reason of condemnation or damage by fire or casualty.” (Lease § 22.A; see also *Garcia v. D/AQ Corp.* (2020) 57 Cal.App.5th 902, 908, exculpatory clause in the parties’ commercial lease expressed clear intent to exempt defendant from liability for injury to plaintiff, parties knowingly bargained for this protection, no public interest was involved, and plaintiff did not allege or present evidence of intentional wrongdoing, gross negligence, or active negligence.)

The Lease does, however, contain a section of repairs that are to be maintained by the Landlord. (Lease §22(B).)

But based on the allegations in the FAC, it is not clear to the Court that the alleged leaks were the responsibility of the Landlord to repair.

Plaintiffs also alleges that Defendant Landlord owes duties of habitability and repair under Civil Code § 1941.1, 1102, 1102.17, and Health and Safety Code § 17910.

But these sections are for residential properties or leases with an option to purchase.

Plaintiffs also cite Health and Safety Code § 26147 et seq.

Section 26147 requires commercial property landlords to provide written disclosure to prospective and current tenants when mold is known to either exceed permissible exposure limits or pose a health threat. ([Health & Saf. Code § 26141\(a\)](#).) But these disclosure requirements (Health & Saf. Code § 26140 et seq.) do not apply where the tenant is contractually responsible for maintenance of the property, including remedial action. (See Health & Saf. Code § 26144.)

Thus, the Demurrer is sustained.

2. Nuisance

A nuisance is broadly defined as a nontrespassory interference with the use and enjoyment of land. (*San Diego Gas & Elec. Co. v. Sup.Ct. (Covalt)* (1996) 13 Cal.4th 893, 937; see Civ. Code § 3479—“anything injurious to health ... [or] indecent or offensive to the senses, or an obstruction to free use of property so as to interfere with comfortable enjoyment of life or property ...”) A private nuisance interferes with the use and enjoyment of plaintiff’s private property. (*Friends of H Street v. City of Sacramento* (1993) 20 Cal.App.4th 152, 159-162; *Adams v. MHC Colony Park Ltd. Partnership* (2014) 224 Cal.App.4th 601, 610—to succeed on private nuisance claim, plaintiff must prove injury “specifically referable” to use and enjoyment of plaintiff’s land; Rest.2d Torts § 821D.)

Plaintiff must either have a possessory interest in the land affected (e.g., as owner or tenant in possession) or be the holder of an easement for profit or a nonpossessory estate adversely affected by the interference. (Rest.2d Torts § 821E.)

As an initial matter, the FAC only alleges that Defendant Lifestarts is the contracting party in the Lease, not Knierim and Parker. (FAC ¶ 15.)

The elements of an action for private nuisance are: (1) the plaintiff must prove an interference with his use and enjoyment of his property; (2) the invasion of the plaintiff’s interest in the use and

enjoyment of the land must be substantial, in that it causes plaintiff to suffer substantial actual damage; and (3) the interference with the protected interest must not only be substantial, but it must also be unreasonable, in that it must be of such a nature, duration, or amount as to constitute unreasonable interference with the use and enjoyment of the land. (*Mendez v. Rancho Valencia Resort Partners, LLC* (2016) 3 Cal.App.5th 248, 262.)

Under California law, nuisance liability attaches only to a party who created, assisted in creating, or maintained the nuisance. (*Kaura v. Stabilis Fund II, LLC* (2018) 24 Cal. App. 5th 420, 434.)

Here, as set forth above, it appears that Plaintiff Lifestarts had to maintain the plumbing per the Lease. Thus, the allegations are insufficient to show that Defendant caused, created, or maintained, the nuisance.

Thus, the Demurrer is sustained.

3. Breach of contract

“To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) plaintiff’s performance of the contract or excuse for nonperformance, (3) defendant’s breach, and (4) resulting damage to the plaintiff.” (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; CACI 303.)

Where the cause of action for breach of contract is predicated on a written contract, the terms of the contract must be stated verbatim in the complaint or, in the alternative, the contract must be attached to and incorporated into the complaint. (*Otworth v. Southern Pac. Transportation Co.* (1985) 166 Cal.App.3d 452, 458–459.) This is not met.

Additionally, again, the only party to the Lease appears to be the corporate Plaintiff.

The FAC alleges that Plaintiff Chris Knierim executed the lease as Guarantor. (FAC, ¶16.) This agreement is not attached to the FAC; but even if it were, there is no specific provision identified that Defendant purportedly breached.

Defendant also challenges the element of breach as to the Lease because no specific Lease provision is referenced. It appears to be Plaintiff’s duty under the Lease to keep the property in good repair. Plaintiff alleges that Defendant breached the contract by “failing to provide a habitable property that was clean, without defect,

	sanitary, and without conditions harmful to the health and safety of the Plaintiffs”. (FAC, ¶104.) Commercial leases are different than residential leases. There is no implied warranty of habitability. Instead, the landlord will not be held to any duty of repair unless the lease expressly so provides. (<i>Glenn R. Sewell Sheet Metal, Inc. v. Loverde</i> (1969) 70 Cal.2d 666, 671; <i>Del Taco, Inc. v. University Real Estate Partnership V</i> (2003) 111 Cal.App.4th 16, 23.) Similarly, absent provision in the lease, tenants are not under any “general” duty to correct defective conditions except to the extent necessary to prevent waste or to rectify dilapidations caused by their own lack of care. (<i>Glenn R. Sewell Sheet Metal, Inc. v. Loverde</i> (1969) 70 C2d 666, 671, 75 CR 889, 892.) However, if the lease does impose repair and maintenance obligations on the tenant, the extent of obligations actually assumed by the tenant is determined under the same rules governing the tenant’s contractual obligation to “comply with all laws”. (<i>Brown v. Green</i> (1994) 8 Cal.4th 812, 823, fn. 3; <i>Glenn R. Sewell Sheet Metal, Inc. v. Loverde, supra</i>, 70 Cal.2d at 674, fn. 10.) Further, commercial tenants do not have a statutory “repair and deduct” remedy akin to that afforded residential tenants (Civ. Code § 1942). So long as they remain in possession, the tenants must continue to pay the agreed-upon rent. (<i>Schulman v. Vera</i> (1980) 108 Cal.App.3d 552, 560-561.) Thus, commercial landlords and tenants can agree, in the lease or otherwise, to waive or modify any rights and obligations otherwise granted or imposed by statute. (Civ. Code § 3268; <i>250 L.L.C. v. PhotoPoint Corp. (USA)</i> (2005) 131 Cal.App.4th 703, 719-721; <i>see Frittelli, Inc. v. 350 North Canon Drive, LP</i> (2011) 202 Cal.App.4th 35, 45-46—commercial lease’s exculpatory clause exempted landlords from liability for breach of lease, breach of implied covenant of quiet enjoyment, rescission and ordinary negligence based on landlord’s alleged interference with tenancy during shopping center remodeling, barring tenant’s claims as matter of law; <i>Lee v. Placer Title Co.</i> (1994) 28 Cal.App.4th 503, 512-513 & fns. 6 & 7—shopping center lease waiving tenant’s right to terminate for landlord’s default and limiting tenant’s remedies to damages and/or injunction effectively waived right to assert constructive eviction for breach of coven.) When the lease includes a covenant by the landlord to keep any part of the premises, roof, walls, or common area in repair, the extent of the landlord’s duty is measured by the scope of the covenant itself.
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(*Royal Neckwear Co. v. Century City, Inc.* (1988) 205 Cal.App.3d 1146, 1153; *Mattal v. American Trust Co.* (1962) 208 Cal. App. 2d 645, 649–650.)

The allegations here clash with the Lease terms that allocate the duty of repair of plumbing issues to Plaintiff.

Thus, the Demurrer is sustained.

4. Constructive eviction

When a landlord has a duty to make a repair, fails to do so, and the landlord's failure to repair renders a substantial portion of the premises unfit for the purposes intended or deprives the tenant of the beneficial use of a material portion of the premises for a substantial period of time, there may be a constructive eviction that allows the tenant to terminate the lease, vacate the premises, and recover the damages caused by the constructive eviction. (*Groh v. Kover's Bull Pen, Inc.* (1963) 221 Cal.App.2d 611, 614.)

Here, this overlaps with the issues above because the Lease allocates repairs to Plaintiff. Further, Plaintiffs have not shown an independent duty.

Thus, the Demurrer is sustained.

5. Leave to Amend

"Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of *whether leave to amend is requested or not.*" (*McDonald v. Sup.Ct. (Flintkote Co.)* (1986) 180 Cal.App.3d 297, 303-304; *Tarrar Enterprises, Inc. v. Associated Indemnity Corp.* (2022) 83 Cal.App.5th 685, 688-689; *City of Stockton v. Sup.Ct. (Civic Partners Stockton, LLC)* (2007) 42 Cal.4th 730, 747—where plaintiff has not had opportunity to amend complaint in response to demurrer, "leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment").

Here, both the Landlord and Tenant owed duties of repair. Plaintiff(s) are provided 20 days leave to allege that the leaks were Defendant's duty to repair per the Lease and/or statutes that apply to commercial properties (not residential).

The individual Plaintiffs must allege their standing to sue/a duty owed to them individually, as to each cause of action.

		Defendant shall serve notice of this ruling.
13.	2024-1393091 Chambers vs. Johnson	“Chambers”)) for an order sealing the unredacted Exhibit 18 Plaintiff submits in opposition to the motion for summary adjudication filed by Defendant David Johnson (“Johnson”) and in opposition to the motion for summary adjudication filed by Defendant Adrian Dehghanmanesh (“Dehghanmanesh”) are denied. The unopposed motions by Johnson for an order sealing the unredacted Exhibit 7 submitted by Plaintiff in opposition to Johnson’s motion for summary adjudication and in opposition to Dehghanmanesh’s motion for summary adjudication are denied. Johnson’s motion for summary adjudication is DENIED. Dehghanmanesh’s motion for summary adjudication is denied. MOTIONS TO SEAL <u>Applicable legal authority</u> “A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application <i>must</i> be accompanied by a memorandum <i>and</i> a declaration containing facts sufficient to justify the sealing.” (Cal. Rules of Ct., Rule 2.551(b)(1) [emphasis added].) A copy of the record to be filed under seal must be lodged with the court when the motion or application is made, unless good cause exists for not lodging it or the record has previously been lodged under subpart (3)(A)(i). (Cal Rules of Ct., Rule 2.551(b)(4).) Pending the determination of the motion or application, the lodged record will be conditionally under seal. (<i>Id.</i>) The Court may order that a record be filed under seal only if it expressly finds facts that establish that: • there exists an overriding interest that overcomes the right of public access to the record • the overriding interest supports sealing the record • a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed • the proposed sealing is narrowly tailored • no less restrictive means exist to achieve the overriding interest. (Cal. Rules of Ct., Rule 2.550(d).) Although a “contractual obligation not to disclose can constitute an overriding interest,” the moving party must still show prejudice will result if the document is not sealed. (<i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1283; <i>see also</i> Cal.